SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: Civil Appeal No. 2568 of 2020 (YEAR: 2020)

CORAM: D.Y. CHANDRACHUD, AJAY RASTOGI

Secretary, Ministry of Defence
... Appellant(s) / Petitioner(s)
Versus
Babita Puniya
... Respondent(s)

Acts Referred:	Constitution of India, Army Act, 1950
Sections:	Article 14, Article 16, Article 15

JUDICIAL HEADNOTE & SUMMARY

Landmark verdict directing the grant of Permanent Commission to Women Short Service Commission Officers in the Indian Army, striking down institutional gender barriers.

RATIO DECIDENDI

The Court held that: Landmark verdict directing the grant of Permanent Commission to Women Short Service Commission Officers in the Indian Army, striking down institutional gender barriers. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in Secretary, Ministry of Defence v. Babita Puniya (Civil Appeal No. 2568 of 2020) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Constitution of India, Army Act, 1950, particularly Article 14, Article 16, Article 15. Landmark verdict directing the grant of Permanent Commission to Women Short Service Commission Officers in the Indian Army, striking down institutional gender barriers.

OPERATIVE ORDER

ORDER: Decided